

26VECV04284 26VECV04284

County: los-angeles

Division: Civil Law and Motion

Department: B

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Tentative Ruling

Saghian v. Select Portfolio

Services, Case no. 26VECV04284

Hearing date August 26, 2026

Plaintiff

Saghian's Motion for Preliminary Injunction

Plaintiff

Saghian, in pro per, sues defendants Select Portfolio Services, Inc., U.S. Bank, N.A., and Robertson, Anschutz, Schneid & Crane LLP for declaratory and injunctive relief arising from foreclosure proceedings. Plaintiff applied ex parte for a temporary restraining order preventing a trustee's sale and OSC re: preliminary injunction. The court denied the application for lack of exigent circumstances and set the matter for hearing. 7/31/26 Min. Order. Defendants oppose. The planned trustee's sale which necessitated the initial ex parte application was cancelled. See Reply, 2:22-23

Defendants

request judicial notice of: (1) Deed of Trust recorded March 27, 2007, LA County Recorder's Office, doc. No. 2007-703335; (2) Motion for Approval of Settlement filed December 27, 2017, In re David Saghian, US Bankruptcy Court, Central District of California, Case No. 1:16BK-13077-MT; (3) Order Granting Motion for Approval of Settlement entered January 19, 2018, In re David Saghian, US Bankruptcy Court, Central District of California, Case No. 1:16-BK-13077-MT; (4) Quitclaim Deed recorded September 9, 2019 LA County

Recorder's Office doc. No. 2019-919044; (5) Grant Deed recorded November 27, 2019 LA County Recorder's Office doc. No. 2019-1309177; (6) Notice of Default recorded September 22, 2025 LA County Recorder's Office doc. No. 2025-650500; and (7) Notice of Trustee's Sale recorded January 9, 2026 LA County Recorder's Office doc. No. 2026-23954. GRANTED pursuant to Evid. Code §452(c)-(d), (h).

A

party seeking injunctive relief must show entitlement to the remedy. *Triple A Machine Shop, Inc. v. State* (1989) 213 Cal.App.3d 131, 138. The availability of injunctive relief depends on two factors; moving party has the burden of proof. *O'Connell v. Sup. Ct. (Valenzuela)* (2006) 141 Cal.App.4th 1452, 1481. If Plaintiff fails to present an adequate factual showing, supported by admissible evidence, injunctive relief must be denied. Code Civ. Proc., §527(a); *Caringe v. J.C.C. Enterprises* (1988) 205 Cal.App.3d 1536, 1542. Where there is no chance of prevailing on the merits, an injunction should not issue, even if it would prevent irreparable harm. See *Teachers Ins. & Annuity Ass'n. v. Furlotti* (1999) 70 Cal.App.4th 1487, 1498.

Plaintiff

alleges defendants foreclosed on his primary residence. See Decl. Saghian, para. 2. Plaintiff alleges he has valid defenses arising from a settlement reached in a prior Chapter 7 bankruptcy matter. *Id.* paras. 7-13. Plaintiff argues irreparable harm will result absent a TRO and OSC re: preliminary injunction, as defendants previously set the matter for trustee's sale and may do so again. See RJN 7.

Defendants

argue the bankruptcy settlement was between plaintiff and the bankruptcy estate; the settlement discharged the bankruptcy estate's interest in plaintiff's property and does not impact defendants' deed of trust. See RJN 5. Defendants assert plaintiff remains in default on the loan secured by his property. See RJN 1, 6.

Defendants

were not parties to the bankruptcy settlement; the bankruptcy settlement has no bearing on plaintiff's obligations under the loan with defendants, nor does the settlement preclude defendants from moving to sell plaintiff's property if plaintiff defaulted on the loan. Plaintiff's argument that he relied on the bankruptcy settlement in good faith is unavailing. Plaintiff failed to establish facts justifying issuance of a preliminary injunction. DENIED.